DATED: 2020-01-01

SHEFFIELD CITY COUNCIL (1) and PENNINE COMMERCIAL ESTATES PLC (2)

PLANNING OBLIGATION BY DEED OF AGREEMENT PURSUANT TO SECTION 106 TCPA 1990

Planning Application Reference: 20/01984/OUT

Development Site: West Bar Gateway Tower Phase 2, Corporation Street, Sheffield S3 8RB

Electoral Ward: City | Permitted Dwellings: 360

1. DEFINITIONS AND INTERPRETATION

'BCIS Index' means the All-in Tender Price Index published by BCIS / RICS.

'RPI' means the Retail Prices Index (All Items, ONS Series CHAW).

'CPI' means the Consumer Prices Index (All Items, ONS Series D7BT).

'Index Linked' means increased in proportion to the Index from 2020-01-01.

STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 2)

Clause 2.1: Late payment interest accrues at 4% above Bank of England base rate.

Clause 2.2: Written notice required 14 days prior to Occupation thresholds.

STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 3)

Clause 3.1: Late payment interest accrues at 4% above Bank of England base rate.

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 4)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 5)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 6)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 7)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 8)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 9)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 10)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 18)

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SCHEDULE OF DEVELOPER COVENANTS (20/01984/OUT)

Schedule 2, Paragraph 5.1 - West Bar Active Travel & Bus Rapid Transit Junction Works [OBL-20-01984-01]

Category: HIGHWAYS_AND_TRANSPORT | Base Sum: GBP 390,000.00 | Indexation: BCIS (2020-01-01)

The Developer shall pay the Highways & Active Travel Contribution of GBP 390,000
(BCIS Index Linked from January 2020) prior to Occupation of the 150th Unit.

STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 23)

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